

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 4, 2026
8:30 a.m./1:30 p.m.

6. JASON HARDOUIN V. JENAE NORELL

22FL0118

On March 9, 2026, Counsel for Respondent filed a Notice of Motion and Motion to be Relieved as Counsel. The motion was served on Respondent and on Petitioner's counsel on March 10, 2026.

Counsel states that there has been an irreparable breakdown of the attorney-client relationship due to a conflict of interest that cannot be waived. The motion is granted pursuant to Aceves v. Sup. Ct., (1996) 51 Cal. App. 4th 584, which states that the court may rely on Counsel's representation that there is a conflict, or that the attorney-client relationship has suffered an unrepairable breakdown, without knowing the underlying facts behind those statements. Withdrawal will be effective as of the date of filing the Proof of Service of the formal, signed order upon the client.

TENTATIVE RULING #6: THE MOTION TO BE RELIEVED AS COUNSEL IS GRANTED. WITHDRAWAL WILL BE EFFECTIVE AS OF THE DATE OF FILING PROOF OF SERVICE OF THE FORMAL, SIGNED ORDER UPON THE CLIENT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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7. AARON FREDERICK LUKIANOW V. CINDY ANN LUKIANOW

23FL0373

On March 2, 2026, Respondent filed a Request for Order (RFO) seeking attorney's fees, sanctions, and an order directing the clerk to sign the QDRO as elisor. She filed a compendium of exhibits, a proposed order, and her Income and Expense Declaration concurrently therewith. The RFO and Notice of Tentative Ruling were served on March 9th. The remaining documents were served on March 13th.

Petitioner filed and served his Responsive Declaration to Request for Order on May 1st.

On May 27th Respondent filed and served a Memorandum of Points and Authorities and an objection to Petitioner's declaration and exhibits.

Respondent asks that the clerk of the court be appointed as elisor to sign the Qualified Domestic Relations Order (QDRO) for Williams-Sonoma, Inc. 401(k) plan. She further requests sanctions in the amount of \$5,000 pursuant to Family Code § 271 and attorney's fees in the amount of \$6,765 pursuant to Family Code § 2030. Respondent objects to Petitioner's declaration as it is not in compliance with Civil Procedure § 2015.5 and is therefore, inadmissible. She further objects to the court's consideration of Petitioner's Exhibits A through S as they have not been properly authenticated.

Respondent's objection to the declaration is overruled. Page 2 of the FL-320 does certify under penalty of perjury that the information in "all attachments is true and correct." The court finds this meets the requirements of Civil Procedure § 2015.5 therefore the objection is overruled.

The objection to Petitioner's attachments is overruled. By signing the FL-320, Petitioner certified that each of the attachments are "true and correct" which the court interprets to mean they are true and correct copies of the documents they purport to be. As such, the objection is overruled.

Turning to the request for appointment of an elisor, the request is granted. The appointment of an elisor is authorized by the court's general authority to compel obedience to its orders as set forth in Civil Procedure § 128(4). The language of Section 128 has been interpreted to mean that judges can do what is necessary to "exercise reasonable control over litigation before [them]... to achieve justice and prevent misuse of processes lawfully issued." Venice Canals Resident Homeowners Assn. v. Superior Court (1977) 72